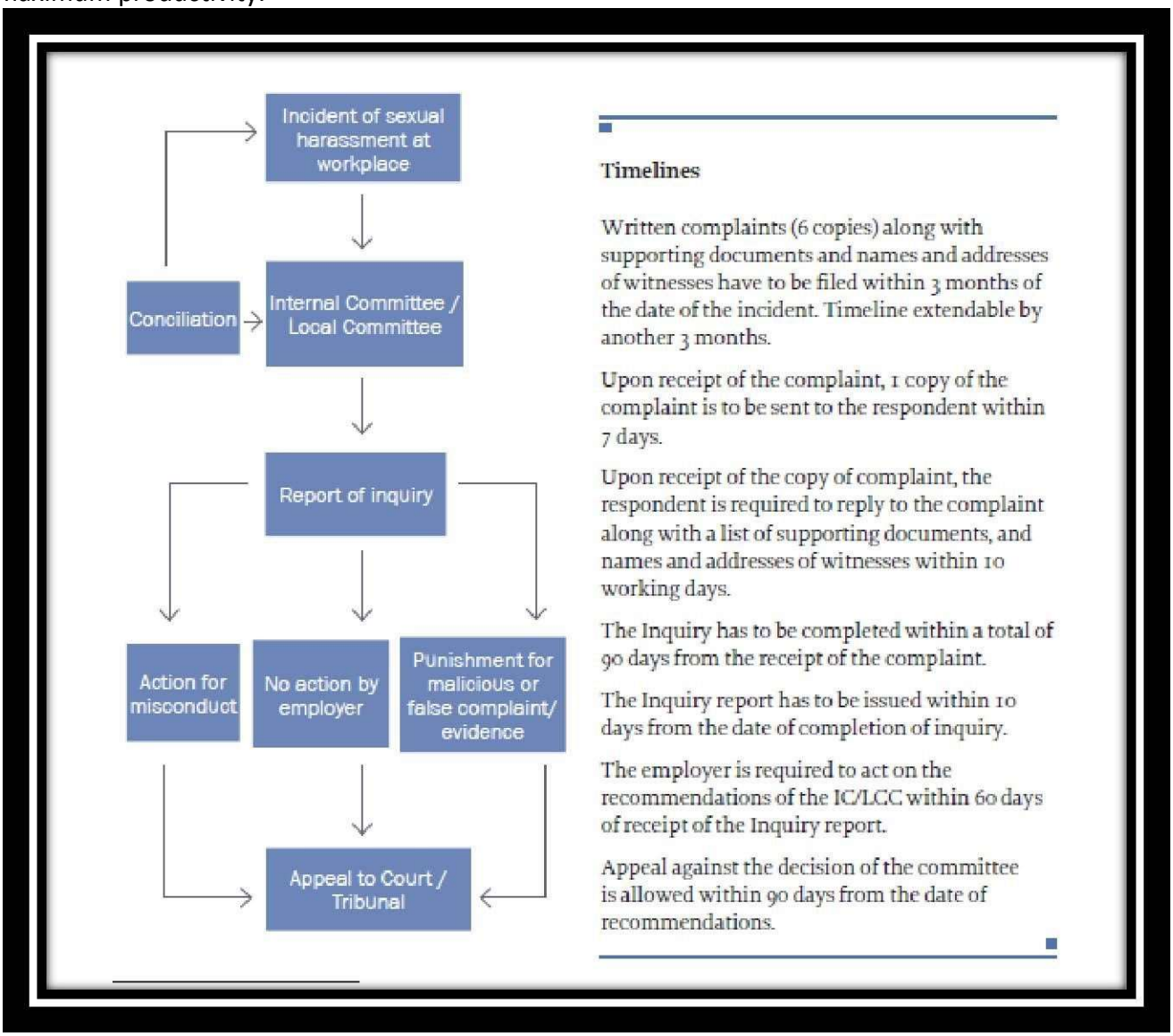
The Sexual Harassment at workplace (Prevention, Prohibition and Redressal) Policy

Statement of Non-tolerance

At SNEHA, we have zero-tolerance for sexual harassment. We value every single individual working at SNEHA and wish to protect their dignity. In so doing, we are determined to promote a working environment in which individuals of both sexes work, complement each other as equals in an environment that encourages maximum productivity.



Behaviour that has been defined as inappropriate by SNEHA's Prevention of Sexual Harassment at Workplace Policy (whether physical verbal, written, graphic emotional or through gestures) that offend intentionally or not, and offends the dignity and morality of an individual to which the behaviour is directed by fellow employees, supervisors, vendors and suppliers will be considered sexual harassment and invite serious disciplinary action.

SNEHA's Prevention of Sexual Harassment at Workplace Policy covers every individual engaged with SNEHA in the capacity of either – Permanent employment, Probationer, Consultant, Individual employed through third-party vendor, Student, Trainee, Volunteers and Visitors. It is applicable to allegations made by and against employees of SNEHA working out of all locations of SNEHA, irrespective of whether sexual harassment is alleged to have taken place within or outside SNEHA premises. SNEHA encourages every employee who believes they are sexually harassed to use the Redressal Mechanism that has been laid down

in this policy. We at SNEHA are committed to giving every employee a just and fair hearing on issues that are raised on sexual harassment. SNEHA will take very serious disciplinary action against any victimization of the complainant or the alleged harasser that may result from a complaint.

SNEHA's Prevention of Sexual Harassment at Workplace Policy has been drafted as per Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 ("POSH Act") and rules under the POSH Act titled the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Rules, 2013 ("POSH Rules").

Definition of Sexual Harassment

A. "Quid Pro Quo (this for that) Harassment": Sexual harassment by managers and supervisors generally is considered "quid pro quo" harassment when it involves the solicitation of sexual favors in exchange for a type of employment decision. To prove quid pro quo harassment, a complaining employee/consultant must show that he/she was subject to an unwelcome request for sexual favors by a supervisory employee and that his/her acquiescence to, or rejection of, the request was used as the basis for decisions affecting his/her compensation, terms, conditions, or other privileges of employment. Preferential treatment may also constitute quid pro quo harassment.

B. "Hostile Work Environment Harassment": Harassment by non-hierarchal employees generally falls into the category of "hostile environment" sexual harassment. Typically, there is no direct link between the offensive conduct and a tangible job benefit or detriment in hostile environment cases. An employer is responsible for hostile environment harassment by non-supervisory employees only if it is proved that the employer knew or should have known of the harassment and failed to take immediate and appropriate remedial action.

Sexual harassment is:

1. Any uninvited sexual behaviour from individuals of the same or opposite sex
2. Behaviour that offends the dignity of the individual to whom it is directed.
3. The point of consideration should be the effect that the conduct of one individual has on another individual rather than whether the behaviour was intentionally offensive or not.
4. Individuals using their positions of power to degrade and humiliate or demand sexual favours.

The following behaviour is considered inappropriate within the SNEHA working environment and is liable for disciplinary action:

Verbal Harassment:

1. A demand or request for sexual favours.
2. Comments about a person's sex or private life
3. Sexually coloured remarks

Physical Harassment

1. Offensive gestures
2. Touching in a sexual manner
3. Assault or coerced sexual acts.
4. Stalking

Written or Graphic Harassment

1. Unsolicited forwarding of pornographic pictures through email, messages or any other form of written/graphic communication tool.
2. The display of sexually suggestive objects, pictures, magazines, posters or cartoons in the work-area.
3. Written communication that has sexual implications.

The following circumstances, among other circumstances, if they occur or are present in relation to or connected with any act or behaviour of sexual harassment may amount to sexual harassment:

- Implied or explicit promise of preferential treatment in employment;
- Implied or explicit threat of detrimental treatment in employment;
- Implied or explicit threat about present or future employment status;
- Interference with work or creating an intimidating or offensive or hostile work environment; or humiliating treatment likely to affect the individuals health or safety

Third Party Harassment

As per the Supreme Court Guidelines, Third Party Harassment occurs as a result of an act or omission by any third party or outsider, the employer and person in-charge will take necessary and reasonable steps to assist the affected person in terms of support and preventive action.

This case is particularly relevant in SNEHA where our employees are constantly in touch with third parties through their interaction with beneficiaries, vendors, suppliers, other NGO's, CBO's, Hospitals, Health Post, Police and other Government organizations, funders, guests etc.

Redressal Mechanism, Process Flow, Redressal Committee

The POSH Act requires an employer to set up an 'Internal Committee' ("IC") based on certain guidelines to hear and redress grievances pertaining to sexual harassment.

In accordance with the POSH Act, SNEHA has set up an **'Internal Committee' ("IC")** comprising of the following members:

Role	Name	Email Id	Contact Number	Program
PRESIDING OFFICER /CHAIRPERSON	Sarita Patil	sarita@snehamumbai.org	9930456313	Public System Partnership
INTERNAL MEMBERS	Sachin Jadhav	sachin.jadhav@snehamumbai.org	9833516070	Administration
	Deepali Kedare	deepali.kedare@snehamumbai.org	9920772796	PVWC-RPS
	Onil Kulkarni	onil.kulkarni@snehamumbai.org	9167982818	EHSAS
	Pouruchisti Wadia	pouru.wadia@snehamumbai.org	9022659532	RPC
	Suchita Bavadekar	suchita.bavadekar@snehamumbai.org	8424807285	MCH-Aahar
EXTERAL MEMBER	Sneha Khandekar	snehakhandekar@hotmail.com	9819770166	External Member

Powers of the IC

The POSH Act stipulates that the Internal Committee (IC) shall, while inquiring into a complaint of workplace sexual harassment, have the same powers as vested in a civil court under the Code of Civil Procedure, 1908 when trying a suit in respect of:

- Summoning and enforcing the attendance of any person and examining him on oath;
- Requiring the discovery and production of documents; and
- Any other matter which may be prescribed.

Complaint Mechanism

1. An aggrieved individual who intends to file a complaint is required to submit six (6) copies of the written complaint, along with supporting documents and names and addresses of the witnesses to the IC or LCC, within 3 months from the date of the incident and in case of a series of incidents, within a period of 3 months from the date of the last incident.

Prompt reporting of an act of sexual harassment is probably as important as swift action to be taken by the authorities on receiving a complaint. Infact the more prompt the complaint is, the more authentic can it be treated.

2. In instances where sufficient cause is demonstrated by the complainant for the delay in filing the complaint, the IC may extend the timeline for filing the complaint, for reasons to be recorded in-writing.

3. Friends, relatives, co-workers, psychologist & psychiatrists, etc can file the complaint in situations where the aggrieved individual is unable to make the complaint on account of physical incapacity, mental incapacity or death.

4. Given that the POSH Act and the POSH Rules do not prescribe any format in which the complaint needs to be filed, the following tips may be kept in mind:

➢ The written complaint should be addressed to the IC members only.

➢ The complaint should be concise, i.e. it should be written in simple language which can be understood easily.

➢ Details of exact incident, date and time, witness etc. to be included.

➢ Circumstances preceding and following the incident to be recorded.

➢ Append as many documents as possible in whatever format i.e. relevant e-mails, screenshots of SMS's/whatsapp messages, call details, photographs, recordings etc.

➢ Details of the respondent including name, designation, reporting structure between complainant and respondent if any (whether subordinate, colleague or superior etc).

➢ Do not state anything that is false or incorrect.

➢ The relief that is sought from the employer.

Redressal Process/ Inquiry

Please refer to the flowchart below which provides an overview of the process to be followed by the aggrieved individual to make the complaint and by the IC to inquire into the complaint.

Complaint Handling

The Complainant shall submit to the Internal Committee, six copies of the complaint along with the supporting documents and the name and address of the witnesses. The Committee shall, within a period of seven days from the date of receipt of the same, send one copy to the Respondent.

The Respondent shall file his/her reply to the complaint along with the list of documents and the name and address of the witnesses, within a period not exceeding ten working days from the date of receipt of the documents.

The Internal Committee may, before initiating an inquiry, at the request of the Complainant may do reconciliation between her and the Respondent However, no monetary settlement shall be made the basis of the conciliation. Where a redressal has been done through conciliation, the Internal Committee shall document it and take signatures of both parties and forward the same to the management to take action as specified in the recommendation.

The Internal Committee will make all reasonable efforts to conduct inquiry thoroughly and fairly, considering protect the rights and dignity of the people involved, including the person who is believed or claimed to be harassing another. Employees who report instances of sexual harassment and all those contacted in connection with the inquiry are obliged to cooperate in the investigation and to maintain the confidentiality of the process. Failure to cooperate in an inquiry or reporting false claims may lead to discipline up to and including termination.

The Internal Committee shall proceed to make an inquiry into the complaint in accordance with the principles of natural justice and further during the course of inquiry provide an opportunity of being heard to the Complainant and the Respondent and the relevant witnesses provided by the Complainant and the Respondent.

The parties shall not be allowed to bring in any legal practitioner to represent them in their case at any stage of the proceedings before the Internal Committee. The investigation process shall be completed with a period of ninety days from date of commencement of the inquiry.

All Employees should be aware that the privacy and confidentiality of all persons involved in reporting incidents of possible Sexual Harassment and in the investigation of possible Sexual Harassment will be maintained to the extent reasonable and possible under the circumstances. In addition, the Internal Committee will take appropriate corrective action to remedy violations of this portion of the policy, up to and including termination of the Employee(s) who violate this portion of the policy.

On the completion of an inquiry, Internal the Committee will provide a report of its findings with recommendations to the management and such report will be made available to the concerned parties.

In the event that the Internal Committee arrives at the conclusion that:

(a) there is no case for Sexual Harassment, then the complaint may be dropped by the Internal Committee and shall notify the management of the same.

(b) Where the Internal Committee arrives at the conclusion that the allegation against the Respondent has been proved, it shall recommend to the management to take appropriate action, including a written apology, warning, reprimand or censure, withholding of promotion, withholding of pay rise or increments, terminating the Respondent from service or that the Respondent undergoes a counselling session or carry out community service.

If the allegation is proved to be false or malicious, action may be recommended against the Complainant as deemed fit by the Internal Committee. However, the mere inability to substantiate a complaint or provide adequate proof does not constitute grounds for taking action against the Complainant. Action can be taken against witnesses who give false evidence or produce any forged or misleading document, as recommended by the Internal Committee.

In addition to the above,

- Where there is a need for any additional facts, the IC is authorized to nominate internal or external persons to undertake fact finding or make the necessary enquiries on its behalf and report the same to the IC. The IC may also undertake any other means they deem appropriate to arrive at the facts or get information relevant to the case. This may include personal interviews with concerned employees, asking for documents or records, etc.

- The entire proceedings will be minuted by the IC and submitted to the CEO.

- Failure or refusal of any persons to co-operate, or to disturb or misguide the committee during its investigations may result in disciplinary action against such persons as deemed appropriate by the CEO.

- In the event that the conclusions of the IC are unsatisfactory to either individual, an appeal in writing can be made to the tribunal / court, by the party who is requesting the appeal within 90 days.

Interim Reliefs

At the request of the complainant, the IC may recommend to the CEO to provide interim measures such as:

1. Transfer of the aggrieved individual or the respondent to any other workplace;
2. Grant leave to the aggrieved woman up to a period of 3 months in addition to her regular statutory/ contractual leave entitlement;
3. Restrain the respondent from reporting on the work performance of the aggrieved individual.

Conciliation

Before initiating action on a complaint, the IC on the request of the aggrieved individual, can make efforts to settle the matter between the parties through conciliation by bringing about an amicable settlement. Conciliation is basically an informal method of resolving complaints before the complaint escalates into a fully blown formal inquiry. Thus, after a complaint of sexual harassment has been lodged, the aggrieved individual may request the IC to resolve the matter by

conciliating between the parties before commencement of the inquiry proceedings. Once the settlement has been arrived at, the IC shall record the settlement arrived at and thereafter provide copies of the settlement to the aggrieved individual as well as the respondent. Incase a settlement cannot be arrived; the IC shall proceed with an inquiry under the POSH Act.

Disciplinary Action

The nature and severity of disciplinary action against the guilty will be in direct proportion to the seriousness of the offence. This could range from but will not be limited to:

1. A letter of warning that will be placed in the personal file.
2. Immediate transfer or suspension without pay or both.
3. Dismissal/ termination from the services of SNEHA.
4. Withholding of promotion, increments or both
5. Undergoing counseling
6. Any other disciplinary action that the committee may deem fit.

Frivolous complaints

If the IC concludes that the allegation made by the complainant is false or malicious or the complaint has been made knowing it to be untrue or forged or misleading information has been provided during the inquiry, disciplinary action in accordance with the above can be taken against such complainant.

Confidentiality

Recognising the sensitivity attached to matters pertaining to sexual harassment, SNEHA attaches significant importance to ensuring that the complaint and connected information is kept confidential. The POSH Act specifically stipulates that information pertaining to workplace sexual harassment shall not be subject to the provisions of the Right to Information Act, 2005. Individuals involved in the complaints process/inquiry/redressal should refrain from divulging the details of complaint / any information gathered by them in the course of the inquiry and the identities of the persons involved should not be disclosed. Any breach of confidentiality will be taken seriously and will attract disciplinary action in accordance with the above.

Annexure 1:
Examples of Conduct Amounting to Sexual Harassment

Whether an act or conduct would amount to 'sexual harassment' is dependent on the specifics of the act and the circumstances. The following is an indicative list of conduct that could be considered as sexual harassment:

Unwanted sexual advances or propositions;

Eve-teasing;

Pestering for dates or receiving unwelcome sexual suggestions or invitations;

Offering employment benefits in exchange for sexual favours;

Leering;

Making sexual gestures;

Displaying sexually suggestive objects or pictures, cartoons, calendars or posters;

Making or using derogatory comments, comments about a person's body or dress, slurs, epithets or sexually suggestive jokes;

Written communications of a sexual nature distributed in hard copy or via a computer network, suggestive or obscene letters, notes or invitations;

Physical conduct such as unwanted touching, assault, impeding or blocking movements;

Being forcibly kissed or hugged;

Having someone expose their private parts to you or repeatedly staring at a woman's body parts that makes her uncomfortable;

Making or threatening retaliation after a negative response to sexual advances or for reporting or threatening to report sexual harassment;

Any act or conduct by a person in authority and belonging to one sex which denies or would deny equal opportunity in pursuit of career development or otherwise making the environment at the work place hostile or intimidating to a person belonging to the other sex, only on the ground of such individual providing or refusing sexual favours;

Sexually tinted remarks, whistling, staring,

sexually slanted and obscene jokes, jokes

causing or likely to cause awkwardness or embarrassment;

Subtle innuendoes or open taunting regarding perfection, imperfection or characteristics of physical appearance of a person's body or shape;

Gender based insults and/or sexist remarks

Displaying pornographic or other sexually offensive or derogatory material;

Forcible invitations for dates;

Forcible physical touch or physical assault or molestation;

Suggesting or implying that failure to accept a request for a date or sexual favours would adversely affect the individual in respect to performance evaluation or promotion;

Explicitly or implicitly suggesting sexual favours in return for hiring, compensation, promotion, retention decision, relocation, or allocation of job/responsibility/work;

Physical confinement against one's will and any other act likely to violate one's privacy.